

TENTATIVE RULING

Case: **Ratinho v. The Regents of the University of California**
 Case No. CV2025-1389

Hearing Date: **March 24, 2026** **Department Eleven** **9:00 a.m.**

Dan R. Lyman of The Lyman Firm, APC's unopposed motion to be relieved as counsel for plaintiff Sergio Ratinho is **GRANTED**. (Cal. Rules of Court, rule 3.1362.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, **this tentative ruling is not effective until moving counsel files a proof of service with the Court showing service of a copy of the signed order on the client**. (Cal. Rules of Court, rule 3.1362(e).) No further order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Vinzymes, Inc. v. Amplifye, Inc.
Case No. CV2025-2558

Hearing Date: March 24, 2026 **Department Fourteen** **9:00 a.m.**

The Court notes that defendant/cross-complainant Amplifye, Inc. (“cross-complainant”) failed to properly meet and confer “in person or by telephone, or by video conference” prior to filing this motion for judgment on the pleadings. (Code Civ. Proc., § 439; Levens Decl., ¶¶ 2, 3.) However, the Court may not deny a motion for judgment on the pleadings for failure to meet and confer. (Code Civ. Proc., § 439, subd. (a)(4); see *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

Cross-complainant’s request for judicial notice filed with its moving papers is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.) Cross-complainant’s request for judicial notice filed with its reply is **DENIED**. (Evid. Code, §§ 452, 453.) The proffered documents are not relevant to the Court’s determination of this motion. (See *People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see also *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Cross-complainant’s motion for judgment on the pleadings is **DENIED**. (Code Civ. Proc., § 438; see *Performance Plastering v. Richmond American Homes of California, Inc.* (2007) 153 Cal.App.4th 659, 665; *Allstate Ins. Co. v. Kim W.* (1984) 160 Cal.App.3d 326, 330-331; *Alameda County Waste Management Authority v. Waste Connections US, Inc.* (2021) 67 Cal.App.5th 1162, 1174-1175.) The Court finds that plaintiff/cross-defendant Vinzymes’ (“cross-defendant”) general denial in its answer to the cross-complaint is sufficient to put into issue all the allegations of the cross-complaint; and (2) paragraph 10 of cross-defendant’s answer, plead as an [inconsistent] affirmative defense, cannot serve as a judicial admission. (Code Civ. Proc., § 431.30, subd. (d); *Anaheim Mobile Estates, LLC v. State of California* (2025) 113 Cal.App.5th 602, 614; *Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240; *People ex rel. Becerra v. Superior Court* (2018) 29 Cal.App.5th 486, 499; *Edger v. Foster* (1941) 48 Cal.App.2d 580, 583; Answer to cross-complaint, ¶¶ 1, 10.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.